

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Wasserman	Team: Team # 8	CCRB Case #: 200907749	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 05/10/2009 4:30 AM	Location of Incident: 154 Post Avenue	Precinct: 34	18 Mo. SOL 11/10/2010	EO SOL 11/10/2010	
Date/Time CV Reported Sun, 05/10/2009 8:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/19/2009 1:11 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Michael Mchugh	04363	925715	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Johnny Diaz	31661	915603	034 PCT
2. POM Brian Jay	29733	919208	034 PCT
3. POM Javier Velazquez	01258	940831	045 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Michael Mchugh	Force: SGT Michael Mchugh struck § 87(2)(b) with an asp.	

Case Summary

§ 87(2)(b) filed a complaint with IAB over the phone on May 10, 2009. The CCRB received this complaint on May 19, 2009. At about 4:30 a.m. on May 10, 2009, § 87(2)(b) was involved in an altercation outside of the Melodia Lounge at 154 Post Avenue in Manhattan when three plainclothes officers approached, identified as Sergeant Michael Mchugh, PO Johnny Diaz and PO Brian Jay of the 34th Precinct. The following allegation resulted:

Allegation A—Force: SGT Michael Mchugh struck § 87(2)(b) with an asp. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Results of Investigation

Civilian Statements:

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) Hispanic male with black hair and dark brown eyes. He is 5'6" tall and weighs 149 pounds.

CCRB Testimony

§ 87(2)(b) provided phone statements to the CCRB on June 2, 2009 (encl. 5B), and June 24, 2009 (encl. 5H). § 87(2)(b) was interviewed at the CCRB on June 16, 2009 (encl. 5C-5E).

§ 87(2)(g)

At approximately 4:30 a.m. on May 10, 2009, § 87(2)(b) was outside a club called the “Melodia Lounge” at 207th Street and Post Avenue in Manhattan, where he occasionally works as a party promoter. A woman came over to say goodbye to § 87(2)(b) and her inebriated boyfriend took offense to this. A friend of the boyfriend punched § 87(2)(b) in the face. § 87(2)(b) got into a fight with this woman’s boyfriend and two of his male friends. Club security separated § 87(2)(b) from two of these three males, but § 87(2)(b) continued to fight with the other male, W1.

While § 87(2)(b) was fighting with W1, § 87(2)(b) was struck on the head. He looked back and saw a plainclothes officer identified as Sgt. Michael Mchugh of the 34th Precinct with a black, extended baton in his hand. § 87(2)(b) had not noticed Sgt. Mchugh before Sgt. Mchugh struck him on the head with his asp and Sgt. Mchugh had not said anything prior to this. Sgt. Mchugh then quickly hit § 87(2)(b) two more times with the asp while § 87(2)(b) shielded the crown of his head with his right hand. These blows hit § 87(2)(b)’s hand, fracturing it.

After the third blow, a bouncer named § 87(2)(b) jumped on § 87(2)(b) covering his body, and said something to the effect of: “Don’t hit him. Don’t hit him. He works for us.” § 87(2)(b) took § 87(2)(b) away from Sgt. Mchugh. § 87(2)(b) had blood flowing from his head wounds, covering his jacket. There were two other plainclothes officers, identified as PO Johnny Diaz and PO Brian Jay of the 34th Precinct, 10 to 12 feet away from § 87(2)(b) while he was being hit by Sgt. Mchugh. § 87(2)(b) was not detained by officers at this time.

§ 87(2)(b) was handcuffed inside the club later that night and transported to the 34th Precinct. At the station house, § 87(2)(b) asked an officer to call for medical assistance. An ambulance arrived and § 87(2)(b) was treated by a female EMT. This EMT asked § 87(2)(b) if he wished

to go to the hospital and he replied yes. PO Diaz told § 87(2)(b) that if he went to the hospital it would be a longer process and that if he didn't ask to go to the hospital he would be released with a summons and could go to the hospital afterwards. § 87(2)(b) told the EMT that he did not wish to be hospitalized, but asked her to take a report. Five minutes later, PO Diaz issued § 87(2)(b) a summons for § 87(2)(b) and released him.

Following his release with a summons, § 87(2)(b) went to § 87(2)(b). § 87(2)(b) received treatment on § 87(2)(b), and then returned for hand surgery.

Statements to Medical Providers

§ 87(2)(b) told the doctors at § 87(2)(b) that the laceration to his head was caused by a blow from a flashlight (encl. 5A). § 87(2)(b) also told medical personnel that he had right hand pain subsequent to punching someone. Hospital records contain no record of § 87(2)(b) stating that he had been hit by a baton or injured by a police officer.

Notice of Claim/50-H Hearing

§ 87(2)(b) filed a notice of claim on § 87(2)(b) (encl. 5L-5P), and a 50-H hearing was held on § 87(2)(a) Gen. Mun. §50-§ 87(2)(g) (encl. 6A-6NN).

Statements to IAB

§ 87(2)(g) § 87(2)(b) was also interviewed by detectives from IAB. § 87(2)(b), § 87(2)(g) A Campisi request was generated for the IAB case file on September 4, 2009, and IAB closed this case on December 8, 2009. However, despite repeated phone calls and follow-up requests, as of the time of the writing of this report, the IAB case file has not yet been released to the CCRB.

Witness: § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided a phone statement to the CCRB on July 28, 2009 (encl. 8). On May 10, 2009, at about 4:30 a.m., § 87(2)(b) was § 87(2)(b) at the Melodia Lounge when he went outside the club and saw § 87(2)(b) fighting with three males. § 87(2)(b) took one of the males off of § 87(2)(b) and brought him to the side. This male stated that he was a police officer, but when § 87(2)(b) asked him for identification, he admitted that he was not a police officer. While § 87(2)(b) was fighting with the other two males, an unmarked car pulled up containing Sgt. Mchugh, PO Jay and PO Diaz. Sgt. Mchugh had an object which was possibly a baton in his hands. Sgt. Mchugh intervened in the fight between § 87(2)(b) and the two other males. § 87(2)(b) did not see what occurred as he had his back to § 87(2)(b) and Sgt. Mchugh, but § 87(2)(b) could hear § 87(2)(b) say, "Don't hit me! Don't hit me! I work here."

Attempts to Contact Civilians

§ 87(2)(b) provided the investigation with a phone number for § 87(2)(b). The investigation called § 87(2)(b) five times between July 7, 2009, and July 16, 2009, leaving a voicemail each time. § 87(2)(b) never contacted the investigation.

The investigation subpoenaed the names and contact information of any club employees who witnessed this incident from § 87(2)(b) owner of the Melodia Lounge. § 87(2)(b) did not

witness this incident and three of the bouncers whose phone numbers he provided, § 87(2)(b) and § 87(2)(b) also denied witnessing this incident. § 87(2)(b) also provided video footage from cameras outside the Melodia Lounge, however this video footage was too blurry to discern any details relevant to the investigation.

Letters sent to § 87(2)(b) who received a summons from this incident, were returned as “attempted not known.” Letters were sent to § 87(2)(b) on August 27, 2009, and October 15, 2009. These letters were not returned, but § 87(2)(b) never contacted the investigation.

NYPD Statements:

Subject Officer: SGT MICHAEL MCHUGH

- *Sergeant Michael Mchugh is a § 87(2)(b)-old white male with red hair and blue eyes who is 6’3” tall and weighs 245 pounds.*
- *Sgt. Mchugh worked from 8:30 p.m. on May 9, 2009 to 5:14 a.m. on May 10, 2009. He was in plainclothes and assigned to an unmarked black Chevrolet Impala as anti-crime supervisor with PO Jay and PO Diaz.*

Memobook

Sgt. Mchugh had the following memo book entry regarding this incident (encl. 10A-10C). At 5:18 a.m. on May 10, 2009: “Three under from f/o 154 Post Ave. Off-duty incident Capt. Navarro ntfd. IAB—Fernandes ntfd.”

CCRB Testimony

Sgt. Mchugh was interviewed at the CCRB on October 30, 2009 (encl. 10D-10E). At about 4:30 a.m., on May 10, 2009, Sgt. Mchugh, PO Jay and PO Diaz were doing routine anti-crime patrol when they saw a fight outside of the Melodia Lounge, located at 154 Post Avenue in Manhattan. The officers got out of their car and approached the scene.

After Sgt. Mchugh had exited his vehicle, he observed a bouncer, § 87(2)(b) striking a male, identified as § 87(2)(b) in the head with his flashlight. Sgt. Mchugh knew § 87(2)(b) from previous incidents. The officers rendered aid to § 87(2)(b) who had suffered severe lacerations to the head. The officers called for assistance and Sgt. Mchugh performed crowd control with his asp out while his officers rendered aid. Sgt. Mchugh did not arrest § 87(2)(b) at this time, as his priority was aiding § 87(2)(b) and he knew that § 87(2)(b) was not going anywhere due to the crowd and his position as a bouncer.

While the officers were rendering aid, another fight broke out outside the club, involving § 87(2)(b) and an individual identified as § 87(2)(b). Sgt. Mchugh approached by himself, with his asp still in his hand, and separated § 87(2)(b) and § 87(2)(b). Sgt. Mchugh put § 87(2)(b) against a car with his asp in his hand. § 87(2)(b) identified himself as working at the club as § 87(2)(b). Sgt. Mchugh then let § 87(2)(b) go as Sgt. Mchugh knew that § 87(2)(b) would stay in the vicinity and he was waiting for additional officers. Sgt. Mchugh did not strike § 87(2)(b) with an asp at this time or any other time. § 87(2)(b) had fled about ten to fifteen feet away from Sgt. Mchugh while Sgt. Mchugh was dealing with § 87(2)(b). Sgt. Mchugh grabbed § 87(2)(b) handcuffed him and brought him over to the other officers.

Another male, identified as off-duty Police Officer Javier Velasquez, approached Sgt. Mchugh § 87(2)(b) § 87(2)(b) approached and punched PO Velasquez in the face in front of Sgt. Mchugh, while PO Velasquez was five feet away from the officers, causing PO Velasquez to fall to the ground. This fight broke

out right after the other fight with § 87(2)(b) § 87(2)(b) and several other bouncers then jumped on PO Velasquez. § 87(2)(b) hit PO Velasquez with his flashlight multiple times. Sgt. Mchugh and PO Diaz went to break up this third fight, pulling people off PO Velasquez.

The officers handcuffed § 87(2)(b). After Sgt. Mchugh handcuffed § 87(2)(b) § 87(2)(b) walked back into the club, where Sgt. Mchugh later arrested him for § 87(2)(b).

Witness Officer: PO JOHNNY DIAZ

- PO Johnny Diaz is a § 87(2)(b)-old Hispanic male with brown eyes who is bald, 5'11" tall and weighs 180 pounds.
- PO Diaz worked from 8:30 p.m. on May 9, 2009 to 5:05 a.m. on May 10, 2009. PO Diaz was assigned to anti-crime and working with PO Jay and Sgt. Mchugh in an unmarked black Chevrolet Impala.

Memobook

PO Diaz had the following memo book entries regarding this incident (encl. 11A-11B). At 4:30 a.m. on May 10, 2009: "pickup 10-34 (assault in progress) i/f/o (in front of) 154 Post Ave." At 5:08 a.m.: "Three under for § 87(2)(b)." ."

Summons

§ 87(2)(b) and § 87(2)(b) were both issued summonses for § 87(2)(b) by PO Diaz for this incident (encl. 11C). Both narratives read: "§ 87(2)(b)

Arrest/Complaint Report

PO Diaz arrested § 87(2)(b) at 5:18 a.m. on May 10, 2009, in front of 154 Post Avenue (encl. 11D-11F). § 87(2)(b) was charged with § 87(2)(a) 160.50

§ 87(2)(b) The arrest report narrative reads: "§ 87(2)(a) 160.50

The complaint report narrative reads: "§ 87(2)(a) 160.50

Criminal Court Complaint

§ 87(2)(g)

CCRB Testimony

PO Diaz was interviewed at the CCRB on October 15, 2009 (encl. 11I-11J). PO Diaz, PO Jay and Sgt. Mchugh were driving by the Melodia Lounge, when they noticed a fight outside this location. There were at least five individuals fighting, who stopped fighting and scattered when the officers got out of the car. There were two injured males on scene. § 87(2)(b) was bleeding profusely from his head and PO Velasquez was beneath at least two to three bouncers, who were sitting on him. The officers had the bouncers get off PO Velasquez.

While the officers were helping PO Velasquez and § 87(2)(b) another fight broke out about ten feet away, involving § 87(2)(b) and § 87(2)(b). PO Diaz thought that § 87(2)(b) and § 87(2)(b) were punching each other. Sgt. Mchugh walked over to this fight to break it up. PO Diaz thought Sgt. Mchugh broke this fight up by pushing § 87(2)(b) and § 87(2)(b) apart. Sgt. Mchugh had his asp out. PO Diaz did not see Sgt. Mchugh strike § 87(2)(b) with his asp, but he was not watching Sgt. Mchugh the whole time that he was with § 87(2)(b) and the other male.

PO Diaz's attention was only partly focused on this fight and Sgt. Mchugh as there was a crowd of at least eight to ten intoxicated people approaching PO Jay. PO Diaz was keeping the crowd from approaching too close to PO Jay while PO Jay was performing first aid on § 87(2)(b) and PO Velasquez. PO Diaz did not have any physical contact with § 87(2)(b) or § 87(2)(b).

§ 87(2)(b) told PO Diaz at the scene that Sgt. Mchugh had struck him with his asp and complained of pain to his hand at the scene and at the station house. PO Diaz noticed that § 87(2)(b)'s hand appeared swollen. PO Diaz did not recall any visible injuries to § 87(2)(b)'s head or blood on § 87(2)(b)'s person. After they transported § 87(2)(b) to the station house, the officers were going to call an ambulance for him, but § 87(2)(b) refused medical assistance as he was being released with a summons. § 87(2)(b) stated that he could go to the hospital himself once he was released.

Witness Officer: PO BRIAN JAY

- PO Brian Jay is a § 87(2)(b)-old white male with brown hair and green eyes who is 6'0" tall and weighs 185 pounds.
- PO Jay worked from 8:30 p.m. on May 9, 2009 to 5:05 a.m. on May 10, 2009. PO Jay was in plainclothes, assigned to anti-crime with PO Diaz and Sgt. Mchugh and in an unmarked auto.

CCRB Testimony

PO Jay was interviewed at the CCRB on October 23, 2009 (encl. 12C-12D). PO Jay had no memo book entries regarding this incident (encl. 12A-12B).

PO Diaz conducted crowd control while PO Jay performed first aid to § 87(2)(b). PO Diaz never left PO Jay's vicinity. Sgt. Mchugh was also at PO Jay's side, however, at some point during this incident, Sgt. Mchugh left PO Jay's vicinity and PO Jay "lost track" of Sgt. Mchugh's location. PO Jay stayed with § 87(2)(b) until EMS arrived and did not have contact with any civilians at the scene other than § 87(2)(b).

PO Jay first noticed § 87(2)(b) at the station house. § 87(2)(b) was under arrest, but PO Jay did not know why § 87(2)(b) was arrested or see any interactions between § 87(2)(b) and officers at the scene. § 87(2)(b) did not complain of any injuries in PO Jay's presence and PO Jay did not observe any injuries to § 87(2)(b).

PO Jay submitted to the investigation a series of photos he took in regards to this incident (encl. 12E-12I). The first photo shows § 87(2)(b) with a deep laceration above his left eyebrow and his face covered with blood. The second photo shows Mr. Velasquez, pulling out his bloody lip. The third photo shows the back of Mr. Velasquez's head, with a large abrasion and blood visible on Mr. Velasquez's scalp underneath his hair. The fourth photo shows Mr. Velasquez's back, with two red marks. The fifth photo shows the mag-lite flashlight allegedly used as a weapon by § 87(2)(b) next to a dime and a ruler for size comparison. The flashlight has a metal body and is approximately 18 inches long.

Witness Officer: PO JAVIER VELASQUEZ

- *PO Javier Velasquez is a § 87(2)(b)-old Hispanic male with black hair and brown eyes who is 5'11" tall and weighs 160 pounds.*
- *PO Velasquez was off-duty at the time of this incident.*

CCRB Testimony

PO Velasquez was interviewed at the CCRB on November 20, 2009 (encl. 13A-13B). § 87(2)(b)

§ 87(2)(b) When PO Velasquez arrived outside the club, § 87(2)(b) and § 87(2)(b) were being assaulted by more than five individuals. PO Velasquez knew that this fight had something to do with a girl.

PO Velasquez told the males assaulting § 87(2)(b) that he was a police officer. However, PO Velasquez was himself assaulted with a pipe or flashlight. PO Velasquez was knocked down to the ground and there were several individuals on top of him. Uniformed and plainclothes officers arrived on scene and pulled the males off of PO Velasquez. PO Velasquez was not punched by any individuals after officers had responded to the scene.

Two officers took PO Velasquez across the street, so that he was out of the fray, and rendered first aid to him. After he was taken away from the area of the fight, PO Velasquez identified himself as an off-duty MOS to the responding officers. PO Velasquez stated that the responding officers broke up the fight by taking "police action", but could not specify what he meant by this. PO Velasquez did not see what police officers were doing after he had been taken across the street. PO Velasquez did not view any officers strike any civilians with their asps.

PO Velasquez sustained lacerations to the left side of his head, a split lip and bruising to his body. PO Velasquez later learned that he had also sustained three broken ribs as a result of this incident. At some point during this incident, PO Velasquez lost consciousness. PO Velasquez was later taken to the 34th precinct station house, where he received medical attention.

Medical Records

§ 87(2)(b) was admitted to § 87(2)(b) at § 87(2)(b) on § 87(2)(b) (encl. 15A-15BB). § 87(2)(b) s gave his history as a § 87(2)(b) who presents with a chief complaint of laceration—*injury...hit on head with flashlight...sustained small laceration to scalp. Also with diffuse right hand pain after punching someone.*" Subsequent to x-rays, § 87(2)(b) was diagnosed with a fracture to the fifth metacarpal on his right hand. § 87(2)(b) received surgery to repair this fracture on § 87(2)(b).

The metacarpal bones connect the bones in the finger to the bones in the wrist. The fifth metacarpal connects the little finger to the wrist. A fracture of the fourth or fifth metacarpals is commonly known as a "boxer's fracture." According to WebMD, it is known as a boxer's fracture because one of the most common causes of these fractures is punching an object or person with a closed fist (encl. 16A-16D).

NYPD Documents:

Command Log

§ 87(2)(b) was brought into the 34th Precinct at 5:35 a.m. on May 10, 2009, for the charge of § 87(2)(b), then released with a summons at 6:47 a.m. (encl. 19A-19B). § 87(2)(b)'s physical/mental condition is given as: "Injury to head/hand RMA [refused medical attention]."

Property Voucher

The following items were vouched by PO Diaz in connection with the arrest of § 87(2)(b): one black mag-lite flashlight, one black belt buckle, five Panasonic D-size batteries and one gravity knife (encl. 21).

Summons for Incident and Disposition

- § 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming personal injuries and harm and seeking an unspecified amount that exceeds the jurisdiction of all lower courts as redress (encl. 5L-5P).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2).

Subject Officer(s) CCRB History

- Sgt. Mchugh has been a member of the service for ten years and there is one substantiated CCRB allegation against him in case no. 200301006 (encl. 1).

Conclusion

Identification of Subject Officers

§ 87(2)(g)

§ 87(2)(b) described the officer who hit him with a baton as a 6'1" or 6'2" white male whom the other officers addressed as Sergeant.

Investigative Findings and Recommendations

Allegation A—Force: SGT Michael Mchugh struck § 87(2)(b) with an asp.

§ 87(2)(b) stated that Sgt. Mchugh struck him three times with an asp, causing a laceration to his head and fracturing his hand, which he used to shield himself. Sgt. Mchugh denied striking § 87(2)(b) with an asp, although he admitted to having his asp out during this incident. No other officer or witness stated that they saw Sgt. Mchugh strike § 87(2)(b) with a baton.

§ 87(2)(b)'s hospital records contain no record that he told medical personnel he was struck by a police officer with an asp and there are alternate mechanisms for the injuries to both § 87(2)(b)'s head and hand. § 87(2)(g)

However, § 87(2)(b) did tell PO Diaz at the time of this incident that Sgt. § 87(2)(b) [§ 87(2)(b)] had struck him with an asp and told IAB the same thing later on May 10, 2009. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Team: 8

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date